

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

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LING HO,

SUMMONS

Plaintiff,

Plaintiff designates QUEENS
County as the place of trial.

-against-

The basis of venue is:
Situs of Occurrence

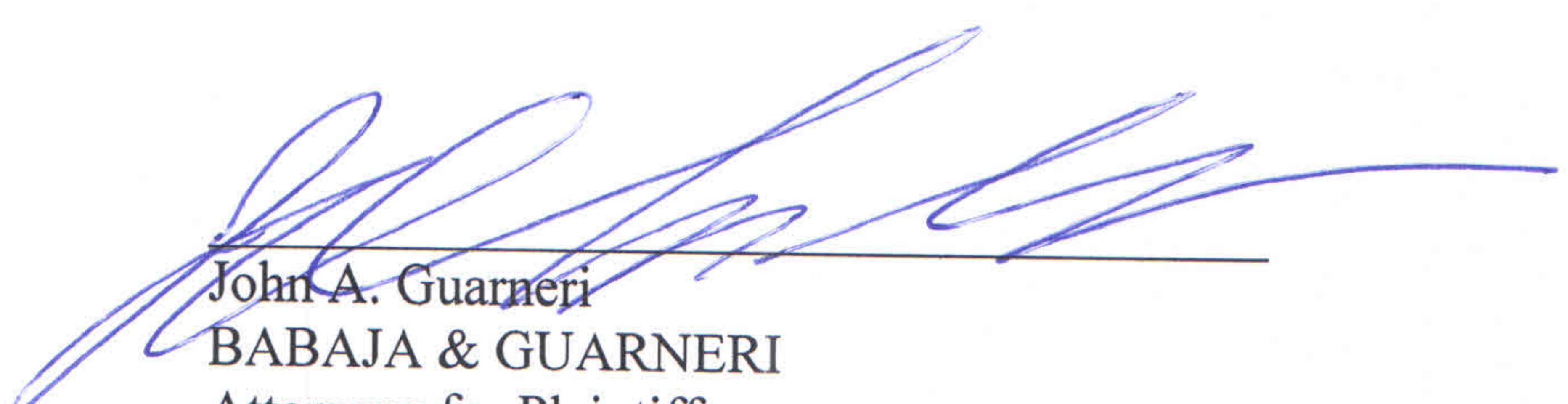
THE CITY OF NEW YORK and P.O. CHRISTOPHER
FUSARO, Shield # 27293,

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Yonkers, New York
November 8, 2014


John A. Guarneri

BABAJA & GUARNERI

Attorneys for Plaintiff

35 East Grassy Sprain Road, Suite 204
Yonkers, New York 10710
(914) 961-1359

CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorneys for Defendants:

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

P.O. CHRISTOPHER FUSARO, Shield # 27293

c/o NYPD, 109th Precinct

37-05 Union Street, Queens, New York 11354

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
LING HO, Index No.

Plaintiff,

VERIFIED COMPLAINT
-against-

THE CITY OF NEW YORK and P.O. CHRISTOPHER
FUSARO, Shield # 27293,

Defendants.

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Plaintiff, by her attorneys, **BABAJA & GUARNERI**, complaining of the Defendants,
respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At the time of the commencement of this action, Plaintiff was and is a
resident of the County of Westchester and State of New York.
2. That this action falls within one or more of the exemptions set forth in *CPLR*
1602.
3. The causes of action alleged herein arose in the County of Queens.
4. At all times relevant and material herein, the defendant CITY OF NEW YORK
was and still is a domestic municipal corporation duly organized and existing
under and by virtue of the Laws of the State of New York.
5. On August 18, 2013, and at all times mentioned herein, police officers of the New
York City Police Department, including defendant P.O. CHRISTOPHER
FUSARO, Shield # 27293, acting in the scope of their employment by Defendant

CITY OF NEW YORK, were present and on duty on or about the area at or near 16-51 201st Street, in the County of Queens, City and State of New York.

6. On August 18, 2013, and at all times mentioned hereinafter, Plaintiff LINGO HO was lawfully on or about the area at or near 16-51 201st Street in the County of Queens, City and State of New York.
7. On August 18, 2013, and at all times mentioned hereinafter, Plaintiff LING HO was caused to be physically detained, assaulted, verbally and physically abused, falsely arrested and wrongfully imprisoned by officers of the N.Y.P.D., including defendant P.O. CHRISTOPHER FUSARO, Shield # 27293, while acting in the scope of their employment by Defendant CITY OF NEW YORK.
8. On August 18, 2013 and at all times mentioned hereinafter, Plaintiff LING HO was caused to be physically detained, assaulted, verbally and physically abused, falsely arrested and wrongfully imprisoned, by defendant P.O. CHRISTOPHER FUSARO, Shield # 27293, while acting in the scope of his employment by Defendant CITY OF NEW YORK, and Plaintiff, while in custody, was caused to sustain severe and permanent mental, emotional and physical injuries.
9. That on or about August 18, 2013 and all times mentioned hereinafter, Plaintiff LINGO HO was maliciously prosecuted on the complaint of defendant P.O. CHRISTOPHER FUSARO, Shield #27293, a police officer acting in the scope of his employment by defendant CITY OF NEW YORK in the Criminal Court of the City of New York, Queens County.
10. On or about July 31, 2014, all charges against the Plaintiff were dismissed by a presiding judge of the New York City Criminal Court, Queens County.

11. On November 15, 2013, a duly executed Notice of Claim setting forth the items of claim raised in this complaint, was filed by Plaintiff on the Office of the Comptroller of the City of New York; with said Notice of Claim having been received by the Office of the Comptroller of the City of New York on November 18, 2013.
12. That a hearing was held pursuant to General Municipal Law 50(h) on October 15, 2014.
13. At least thirty (30) days have elapsed since the service of such notice and adjustment or payment thereof has been neglected or refused.
14. The aforementioned conduct by the police including their excessive use of force and assault upon Plaintiff LING HO was unjustified and was not caused by any action on her part. The arrest of LING HO was without probable cause and was legally unjustifiable.
15. That from August 18, 2013 until on or about July 31, 2014, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent woman, without any probable cause whatsoever, by filing or causing to be filed a misdemeanor complaint in Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.
16. Because of the above stated premises, assault and battery, Plaintiff LING HO was caused to sustain serious injuries and to have suffered pain, shock, shame, disgrace, humiliation, mental anguish, lost earnings and loss of enjoyment of life; that these injuries and their effects will be permanent; and as a result of said

injuries, Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention; and Plaintiff, was and will continue to be, rendered unable to perform Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

17. That as a result of the foregoing, Plaintiff LING HO was damaged in an amount that exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

AS AND FOR A SECOND CAUSE OF ACTION FOR VIOLATION OF CIVIL RIGHTS

18. Plaintiff repeats and realleges the allegations set forth in paragraphs "1" to "17" with the same force and affect as if they were fully restated herein.
19. The seizure, arrest, assault, physical and mental abuse, excessive force, detention and deprivation of liberty of the Plaintiff LING HO by defendant P.O. CHRISTOPHER FUSARO, Shield # 27293, an officer of the New York City Police Department, while in the employ of Defendant CITY OF NEW YORK was under color of state law, statute, ordinance, regulation, custom, or usage as the agent and employee of the N.Y.P.D. of Defendant CITY OF NEW YORK, was in violation of plaintiff's rights under *42 USCA 1983 and §1985* as well as the United States Constitution.
20. The seizure, arrest, assault, physical and mental abuse, excessive force, detention and deprivation of liberty of the Plaintiff by defendant P.O. CHRISTOPHER FUSARO, Shield # 27293, an officer of the New York City Police Department, while in the employ of the Defendant, CITY OF NEW YORK, were effected by a conspiracy involving various members of the N.Y.P.D. to violate plaintiff's rights

under *42 USCA 1983 and 1985* as well as the First, Fourth, Fifth and Fourteenth Amendments of the United States Constitution, and/or Article I, §§ 5, 6, 8, 9, 12 of the New York State Constitution,

21. Upon the above facts, the defendants did deprive plaintiff of her Civil Rights as guaranteed by *42 USCA 1983 and 1985*, the First, Fourth, Fifth and Fourteenth Amendments of the United States Constitution, and/or Article I, §§ 5, 6, 8, 9, 12 of the New York State Constitution,
22. Because of the above stated premises, Plaintiff LING HO was caused to sustain serious injuries and to have suffered pain, shock, shame, disgrace, humiliation, mental anguish, lost earnings and loss of enjoyment of life; that these injuries and their effects will be permanent; and as a result of said injuries. Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention; and plaintiff, was and will continue to be, rendered unable to perform plaintiff's normal activities and duties and has sustained a resultant loss therefrom.
23. That as a result of the foregoing violation of Civil Rights, plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

AS AND FOR A THIRD CAUSE OF ACTION

24. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" to "23" with the same force and effect as if they were fully restated herein.
25. At the time of her arrest and detention, Plaintiff LING HO was not in violation of any law or statute.

26. The aforementioned police conduct including the arrest and detention of the Plaintiff LING HO by defendant P.O. CHRISTOPHER FUSARO, Shield # 27293, an officer of the New York City Police Department, while in the course of his employment by defendant CITY OF NEW YORK was in furtherance of a plan and was occasioned by her protected speech, appearance and national origin rather than by any objective law enforcement criteria.
27. The false arrest and wrongful detention of the plaintiff by the defendants was intentional. The false arrest and wrongful detention of LING HO happened and as a result, plaintiff suffered shame, humiliation, and injury to her reputation.
28. By reason of the aforementioned police conduct, including said false arrest and wrongful imprisonment, Plaintiff LING HO sustained severe injuries, severe and permanent physical and emotional pain and suffering, lost earnings, shame, disgrace, humiliation, and a resulting loss of enjoyment of life.
29. That as a result of the foregoing, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

AS AND FOR A FOURTH CAUSE OF ACTION

30. Plaintiff repeats and re-alleges the allegations set forth in paragraphs “1” to “29” with the same force and effect as if they were fully restated herein.
31. On or about July 31, 2014, a presiding judge of the New York City Criminal Court, Queens County, dismissed all charges against Plaintiff LING HO and no appeal has been taken from that Order.

32. The charges brought against Plaintiff were wholly false and without merit and the arresting officers, as member officers of Defendant CITY OF NEW YORK Police Department, including defendant P.O. CHRISTOPHER FUSARO, Shield # 27293, knew or should have known this fact. For this reason, Plaintiff LING HO claims false arrest, unlawful imprisonment and malicious prosecution.
33. By reason of said malicious prosecution, Plaintiff LING HO sustained severe and permanent injuries, severe and permanent physical and emotional pain and suffering, lost earnings, shame, disgrace and humiliation, and a resulting loss of enjoyment of life.
34. By reason of the foregoing, Plaintiff LING HO has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction over this action.

AS AND FOR A FIFTH CAUSE OF ACTION

35. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" to "34" with the same force and effect as if they were fully restated herein.
36. That on August 18, 2013, and at all times mentioned hereinafter, the Defendants, without cause or provocation, carelessly, negligently and recklessly detained and arrested the Plaintiff LING HO, despite knowing that there were no cause or grounds therefore.
37. By reason of the foregoing negligence, Plaintiff LING HO sustained severe and permanent injuries, severe and permanent physical and emotional pain and suffering, lost earnings, shame, disgrace and humiliation, and a resulting loss of enjoyment of life.

38. By reason of the foregoing negligence, Plaintiff LING HO has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction over this action.

AS AND FOR A SIXTH CAUSE OF ACTION

39. Plaintiff repeats and re-alleges the allegations set forth in paragraphs “1” to “38” with the same force and effect as if they were fully restated herein.
40. That Defendant, THE CITY OF NEW YORK, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; and failed to prevent the aforesaid pain and suffering, defamation, arrest, detainment and permanent physical and psychological injuries to the Plaintiff; and were otherwise reckless, careless and negligent.
41. By reason of the foregoing negligence, Plaintiff LING HO sustained severe and permanent injuries, severe and permanent physical and emotional pain and suffering, lost earnings, shame, disgrace and humiliation, and a resulting loss of enjoyment of life.
42. By reason of the foregoing negligence, Plaintiff LING HO has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction over this action.

WHEREFORE, Plaintiff demands judgment against defendant CITY OF NEW YORK, and defendant P.O. CHRISTOPHER FUSARO, Shield # 27293, jointly and severally, upon each

of the causes of action set forth above, each in an amount to be determined by the trier of fact;
together with the costs and disbursements of this action. Plaintiff further requests punitive
damages and attorneys' fees pursuant to *42 USCA 1983 and 1985* in an amount to be set by the
Court.

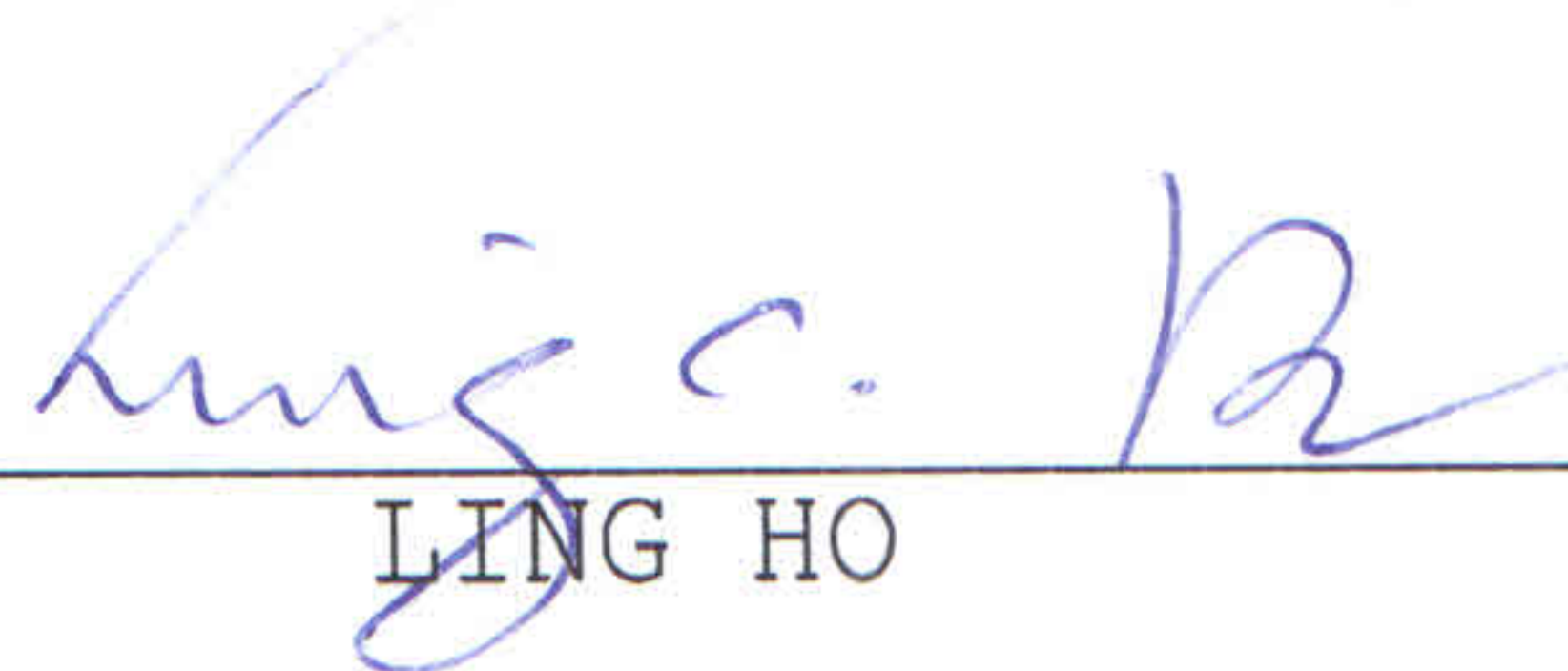
Dated: New York, New York
November 8, 2014



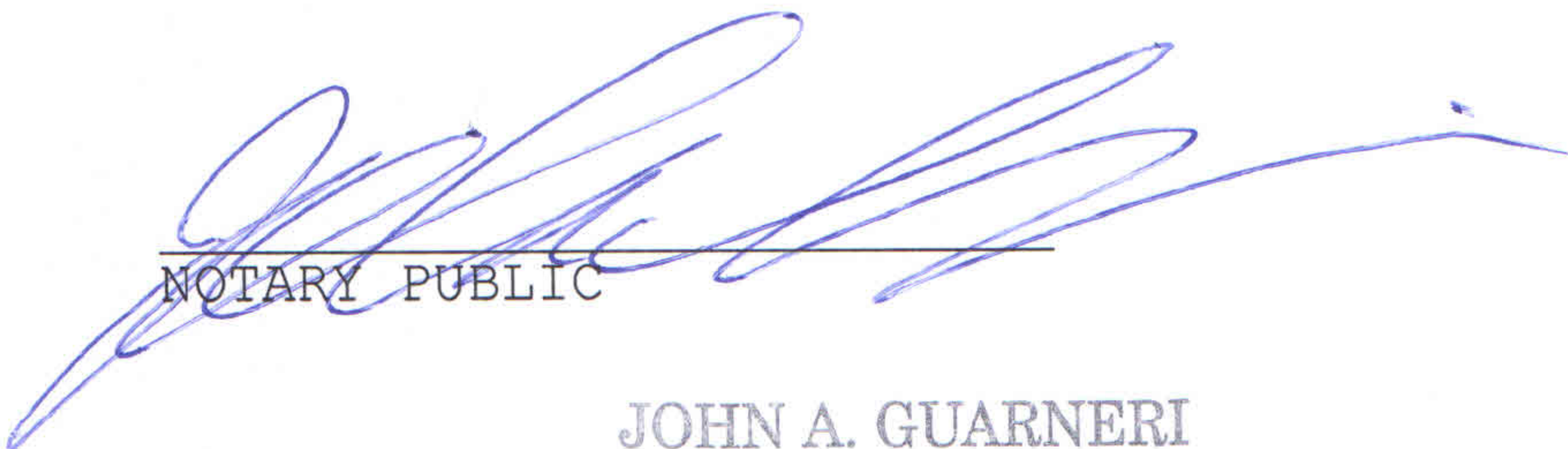
JOHN A. GUARNERI

STATE OF NEW YORK)
COUNTY OF WESTCHESTER) SS.:

LING HO, being duly sworn, deposes and says; I am the plaintiff in the within action and have read the foregoing Summons and Complaint and know the contents thereof; the same is true to my own knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true.


LING HO

Sworn to before me on this
14th day of November, 2014


NOTARY PUBLIC

JOHN A. GUARNERI
NOTARY PUBLIC, STATE OF NEW YORK
NO. 02GU5027955
QUALIFIED IN WESTCHESTER COUNTY
COMMISSION EXPIRES MAY 23, 2018